

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
Crl.Appeal No. 19 of 2008
Abdul Rehman vs. The State
Crl.Appeal No. 78 of 2008

Muhammad Shafqat vs. The State

JUDGMENT

Date of hearing	23.06.2021
Appellants by:	Mr. Muhammad Ahsan Bhoon, Advocate in Crl. Appeal No. 19 of 2008 and Mr. Muhammad Shahbaz Rana, Advocate in Crl. Appeal No. 78 of 2008, with the appellants.
State/ Complainant by:	Mr. Zafar Iqbal Chohan, Special Prosecutor for ANF.

Muhammad Amjad Rafiq, J:- Through both these appeals under section 48 of the Control of Narcotic Substances Act, 1997 (CNSA, 1997), appellants (**Abdul Rehman and Muhammad Shafqat**) have challenged the judgment dated 18.01.2008 passed by the learned trial court in case FIR No.20/2003 dated 02.08.2003 registered under Sections 9(c)/15 of the Control of Narcotic Substances Act, 1997 at Police Station, ANF, Lahore, whereby they were convicted and sentenced as under;

Abdul Rehman

Rigorous Imprisonment for 15 years under section 15 of the Control of Narcotic Substances Act, 1997 with fine of one million Rupees and in default thereof to undergo simple imprisonment for a further period of six months.

Muhammad Shafqat

Imprisonment for life under section 15 of the Control of Narcotic Substances Act, 1997 with fine of one million Rupees and in default thereof to undergo simple imprisonment for a further period of six months.

All the convicts were given benefit of section 382-B of Cr. P.C.

All the assets of each convict derived from trafficking in Narcotics were ordered to stand confiscated in favour of federal Government.

2. Elicited Facts governing prosecution case which map the criminal liability of appellants, commences from the sequence of events as set out by ANF in Crime Report Exh.PA through the words of Umar Hayat Javaid, Deputy Director, ANF, Punjab, Lahore, (PW-25) who told that Mr. W. Leigh Ryon Liaison Officer, Canadian Mounted Police Central South West Asia, Islamabad, Pakistan intimated Lt. Colonel Shaukat Hussain, Joint Director, Special Investigation Cell, Anti-Narcotic Force, Islamabad via Letter No.2003-ISBAD-09-DR-009 dated 18.03.2003 (*letter not produced in evidence*) that Canadian Customs intercepted and seized 11.79 ton shipment of Hashish in Halifax, Nova Scotia at Ceres Terminal which was destined for Montreal, Canada. According to the bill of lading, the consignment was sent through Cargo from Karachi, Pakistan and it was fetched at by the vessel in Sri Lanka. The carter's name was Index Traders MZ-55, Central Plaza, Barkat Market, New Garden Town, Lahore, Pakistan. In the said letter, it was informed that hashish was packed in green plastic covered by two layers of blue commercial "Friskies" a brand of cat food packing with outer layer of yellow plastic wrap. The hashish was marked with a square emblem and in gold lettering the name "Night Crustal". Each bundle was weighing 42 Kg to 45 Kg packed into an "off white" coloured tarp material. In the bill of lading, 169 bales of polyester/cotton fabric were mentioned. There were less than ten bales of cotton within the weight of 11.79 tons seizure of hashish. A copy of bill of lading was also attached with that letter and it was requested that any information if could provide would be of great assistance.

After receiving this letter, a discrete inquiry was held by the Director General, ANF, Rawalpindi, wherein it was found that M/s Index Traders, 55-MZ, Central Plaza, Barkat Market, New Garden Town, Lahore, through its proprietor Razzaq Ahmad, sent a consignment under Shipping Bill No. 3964 dated 22.11.2002 BBL S/No.0701593 containing 169 bales of polyester/ cotton fabric to Canada via Karachi Port to Colombo/ Sri Lanka for its onward transmission to Montreal, Canada in which 11.79 tons hashish was detected at Halifax, Nova Scotia Ceres Terminal, Canada on

17.01.2003. It was further disclosed in the inquiry that the said consignment was booked on 21.11.2002 under bilty No.2536, Al-Atif Goods Forwarding Agency, Plot No. 58, LDA, General Truck Stand, Ravi Link Road, Lahore. On 22.11.2002, the said consignment was carried to Dry Port, Lahore in Container No. POCU-0305613 on Truck No.LXU-8820 which was cleared by Muhammad Shafqat (appellant), an agent of Speedex Cargo, International situated at F-22, 1st Floor, Gulberg Centre, Main Boulevard, Gulberg-III, Lahore under License No.03/2000. GST No. 03-05-9805-114-91. Muhammad Shafqat (appellant) was also identified as Director Globe Linkers Cargo Services. It was also flashed from the inquiry that the said consignment was verified through Waseem Raza, Inspector, Sheraz Munir Malik, Superintendent, Arshad Javaid, Deputy Superintendent and others. During inquiry, it also came on the record that said Razzaq Ahmed was operating Bank Accounts Nos. 1936-3 and 1934-9 with the Bolan Bank, Ltd, Liberty Market, Gulberg, Lahore, in his name and in the name of M/s Index Traders. In the inquiry, it also disclosed that the said consignment was transported from Lahore Dry Port to Karachi Dry Port under the supervision/ responsibility of Abdul Rehman, Manager Marketing, M.A. Land Transport Co. Pvt. Ltd. The consignee of the consignment was M/s Rodair International Ltd. 3710 Nashua Drive, Unit No.3, Mississauga Ontario L4V IM, Phone No. (905) 671-4655. During the inquiry, it was also found that the registration of the truck used in the alleged occurrence was shown in the name of one Noor Din from the name of Muhammad Ashraf, immediately prior the use of the truck for trafficking of said consignment. During the inquiry, it was concluded that prima facie, use of fake address and documents by Razzaq Ahmed and of Noor Din and fake bilty number of Al-Atif Goods Forwarding Agency, Lahore, the quick clearance of the consignment on the same day on the documents indicate that huge quantity of 11.79 tons of hashish seized in Nova Scotia (Canada) was smuggled through the consignment mentioned supra by M/s Razzaq Ahmed, Muhammad Shafqat, Muhammad Ashraf Gujjar, Abdul Rehman, Noor Din through mutual consultation in the shape of criminal

conspiracy, mutual facilitation, by preparing fake documents and with the connivance of the aforementioned Customs Officials for illicit gains. During the inquiry, all the accused were held liable to be prosecuted under sections 9(c) and 15 of the CNSA, 1997.

3. The appellants and the co-accused Muhammad Ashraf were arrested in this case and after thorough investigation, they were found guilty and a report under section 173 Cr.P.C. was submitted before the learned trial court. Razzaq, co-accused could not be traced, therefore, he was declared proclaimed offender. Waseem Raza, Inspector, Sheraz Munir Malik, Superintendent, Arshad Javaid, Deputy Superintendent were declared innocent during the investigation.

4. The learned trial court indicted the appellants and their co-accused to which they pleaded non-culpabilis and claimed trial. 25 witnesses were produced by the prosecution to prove its case including documents Exh.PA to Exh. PYY; Exh. P3 to Exh.P14 including Mark-A/1 to Mark-N.

5. The statements of the appellants were recorded under section 342 Cr.P.C. Replying to a question as to why the PWs deposed against you and why this case against you, Muhammad Shafqat appellant deposed that the prosecution case against him was malafide; result of dishonest investigation; he has been made a scapegoat as none of the actual culprit could be traced out and it has also been admitted by the Investigating Officer during the trial that no irregularity and illegality was found by him in preparation of the documents which were prepared and presented to him; there is nothing incriminating available against him on the record and he pleaded his innocence.

Appellant Abdul Rehman replying to a question as to why the PWs deposed against you and why this case against you, stated as under:-

“The cargo meant for export after examination and clearance by the customs authorities, and duly sealed with seals of customs and security company, is transported from up country dry ports to Karachi sea port by private bonded carries duly licensed for this purpose by CBR Containers containing consignment of

cotton fabrics duly examined/ cleared/sealed by customs as well as security company. Subject matter of the case was transported by the M.A Land Transport Company Pvt. Ltd which is licensed bonded carrier. I was serving with same company as Manager Marketing Dry Port, Lahore and thus I was involved in this case falsely. I neither arranged truck or container nor I was present at the time of loading, examination, clearance or sealing. I was just involved in this case being employee of the company which transported container from Dry Port to Seaport, Karachi. I was neither shareholder, nor director of the said company. Moreover, I never signed any document including Export Transit manifest concerning the consignment in question. I was involved in this case falsely by the Investigating Officer due to malafide as according to him my attitude was lethargic when he visited office of M.A. Land Transport Co, Pvt. Ltd, Lahore and to save Mr. Shahbaz Anjum Butt, Manager M.R. Traders (PW-10) who had submitted written request to P&O Shipping Line for handing over of alleged container to the transporter from terminal and also to save Inspector Preventive Loading Customs, Lahore Dry Port who had allowed to use Truck No.LXU-8820 for transshipment of alleged container from Lahore Dry port to Karachi by affixing his seal and signatures on Export Transit Manifest. I am a retired Govt. Employee and having double M.A. one in economics and other in Business Administration (MBA) having young sons and daughters including one special child. My family reputation and as well as carrier of my children has been spoiled by the IO due to his personal grudge and prejudicialness. Charge against me is wholly baseless, bogus, forged and fabricated based purely on malafide on the part of I.O. Furthermore, none of the PW deposed against me in any form. The entire case has been framed on the basis of assumptions, suppositions and whims. I have committed no offence.

6. The learned trial court after conclusion of trial convicted the appellants and Muhammad Ashraf (**Now dead; who was awarded 10 years imprisonment**) vide judgment supra. The appellants and Muhammad Ashraf assailed the judgement before this court and pursuant to Jail Report that they after serving out their substantive sentence including payment of fine have been released from Jail, their appeals were disposed of as being infructuous on 02.11.2017. Criminal appeal bearing number 222/08 filed by the State for enhancement of sentence was also dismissed on the same terms. Both the appellants cited above challenged the Judgment of this court before Honorable Supreme Court through filing of Cr. Appeal. No. 263 of 2018 (Abdul Rehman Vs. State) and Cr. Appeal. No. 264 of 2018 (Muhammad Shafqat VS State). *Honorable Supreme* vide Order dated 13.11.2018 set aside the orders of this court

and directed that appeals be deemed to be pending, shall be decided by this court afresh after hearing both the parties in accordance with law.

7. Learned Special Prosecutor for ANF has pointed out the role of Muhammad Shafqat accused which is as under:-

Muhammad Shafqat was clearing agent of M/S Speedex International Cargo, Lahore, who submitted documents of consignment belonging to the shipper under fake names to the Customs Authorities and the consignment was got cleared at Moghalpura Dry Port, Lahore. He also arranged container No. POCU 030561-3 for the shipment of narcotics concealed in the bales of cotton, after making inquiry from Saleem (PW6), a Freight Forwarding Agent, and after settlement of rates, he booked it through PW6 for the transportation of goods destined for Montreal-Canada and had taken upon himself to make all arrangement for the clearance and transportation of the container for Karachi and the accused also submitted documents to PW6 which were taken into possession vide memo Ex.PR, and thereby he had intentionally facilitated and assisted Razzaq Ahmad (PO) in the smuggling of 11.79 tons Hashish in 169 bales of cotton from Pakistan to Canada while concealing the actual identity of the shipper with the intention of getting financial gains.

On arrest of the accused on 4.8.2003 by Umer Hayat Javaid DD ANF Lahore (PW25) and on 11.8.2003 on his disclosure and pointing out recovery of as many as 24 documents detailed in Ex. PC were recovered.

Whereas role of Abdul Rehman, as maintained by learned Special Prosecutor for ANF, is as under:-

He was Marketing Manager, M.A. Land Transport company, bonded cargo service located outside Moghalpura Dry Port, Lahore. He intentionally and willingly allowed vehicle No.LXU-8820 to be used in violation of standing instructions for bonded cargo to pick up container No. POCU 030561-3 from the Terminal on fake invoice apparently issued in the name of Al-Atif Goods Forwarding Agency to bring the consignment to Moghalpura Dry Port and from the Dry Port onward to Karachi shipyard. Thus he facilitated and assisted the shipper in the smuggling of huge quantity of 11.79 tons of Hashish from Pakistan to Canada.

On his arrest in the case on 4.8.2003 by Umar Hayat Javaid DD ANF, Lahore (PW25), he got recovered 12 documents which were taken into possession vide recovery memo Exh. PBB. On 7.8.2003 Muhammad Azam Hawaldar Customs (Export Section). Moghalpura Dry port, Lahore, produced before the IO (PW-25) documents including export documents and weighment slip dated 22.11.2002 of vehicle No.LXU-8820 and container No. POCU 030561-3, packing list dated 19.11.2002, all marked Exh. PRR to PVV.

PW-20 Muhammad Hanif also testified that he had supplied his trailer No.9436 to Abdul Rahman on rent basis.

On the other hand, the accused only made their statements under section 342 Cr.P.C. Neither they did make any statement on oath as envisaged by section 340(2) Cr.P.C. nor did produce any evidence in defence except placing on record documents Exh. DA to Ex.DE.

8. On the other hand learned Counsel for Abdul Rehman accused/appellant submitted that when first inquiry officer Lt. Col Shaukat Hussain, Joint Director did not appear before the court to testify the initiation of process and credible source of information to structure the accusation against the accused/appellant, the very lay out of prosecution case stands tarnished. He even did not determine the criminal liability of Abdul Rehman/appellant rather only posted his view that the role of appellant was of lethargic attitude, intentional or unintentional, during the process. None of the PWs established presence or appearance of accused/appellant in any process of transportation of narcotics. Documents brought on record do not bear signature of appellant Abdul Rehman. There is no evidence on record regarding formal request of Canadian government to conduct investigation and determine the origin of Cargo and to prosecute the culprits. It came into the evidence that shipment container of this case had a break at Sri Lanka and they had informed of an accident and damage of such container due to heavy Sea storm. Such fact of damage is also mentioned in the affidavit of Sergeant of Canadian Narcotics Force. In this case, consignee has not been traced out nor any information was brought on record about trial of any accused at Canada Court. Case against the appellant is farce.

Learned Counsel for Shafqat appellant states that prosecution has not tendered original documents into evidence regarding the alleged consignment. Case property was also not produced. Recovery witnesses of alleged Narcotics were not recorded through live link to prove such recovery. Evidence brought by the prosecution manifests that container was finally checked and sealed by the Custom authorities but all the said/ accused officers have been exonerated during investigation and they were not put to trial. No direct evidence is available on record against the appellant.

9. Argument Heard. Record perused.

10. Contentions of parties require thrashing of evidence on factual as well as on legal premises. Before appreciating the evidence of parties, it

would be appropriate to examine the present case on legal premises i.e. what would be the mode of inquiry/investigation of case, international cooperation and mutual assistance issues with foreign countries about production and value of foreign documents. These legal questions can further be summarized under the following heads:-

1. Once a formal request is received from a foreign country, what is the mode to carry out inquiry and other process under Control of Narcotics Substance Act, 1997?
2. Offences under CNSA are extraditable offence; therefore, whether “Principle of Aut Dedere, Aut Judicare” was complied with in this case?
3. Whether investigation record of a foreign agency can be brought on record as evidence before the trial court without formal recording of statement of concerned investigator/witnesses?
4. Whether evidence of a fact could be proved through an affidavit in criminal trial?

11. Mode of inquiry under CNSA, 1997 when a formal request is received from a foreign country.

Chapter VIII of Control of Narcotics Substance Act, 1997 deals with International Cooperation and Mutual Assistance in prevention, detection and evidence gathering process for narcotics offences and it should have been followed to make the evidence legally admissible. Application of this chapter is subject to treaty, arrangement or understanding with foreign states to which Pakistan may from time to time be party, yet nothing in this chapter limit the nature and extent of assistance which Pakistan may otherwise lawfully give to, or receive from foreign states. Section 57 of CNSA, 1997 authorizes the government to request a foreign State to have evidence taken, or documents or other articles produced and transmit to Pakistan such evidence, documents, things, articles, assets or proceeds realized from the disposal of such articles or assets. Similarly, on request received from a foreign country as mentioned in section 58 of CNSA, 1997, Pakistan shall provide proper assistance. Once a formal request of foreign country is received, it should be processed as mentioned in section 59 of the Act *ibid*.

It is not necessary that there must be a treaty in existence between the countries before a request is made rather arrangements and understanding is sufficient as mentioned in section 56 of Act *ibid*. In this case it is also reflected from the request made by Canadian Police to Pakistan and a reference from ANF to Canadian Police for dispatching the record of recovery proceedings which shows that understanding was in existence between both the countries.

Though formal request of Canadian government has not been proved in this case, yet taking shelter of section 58 (3) of Control of Narcotic Substance Act, 1997, which allows acceptance of foreign request, even if it is not formally made; the question arises, how the process would take lead after acceptance of such foreign request. The Anti-Narcotics Force under section 5 of Anti-Narcotics Force Act, 1997 performs following functions;

5. Functions of the Force. *The Force shall*

(a) inquire into, investigate and prosecute all offences relating to, or connected with, preparation, production, manufacture, transportation, illicit trafficking or smuggling of intoxicants, narcotics and chemical precursors or reagents used in the manufacture of narcotics, or any offence committed in the course of the same transaction under any law for the time being in force, including an attempt or conspiracy to commit, or any abetment of, any such offence, or any offence committed under the Control of Narcotics Substances Ordinance, 1996 (XCIV of 1996), or the Prohibition (Enforcement of Hadd) Order, 1979 (P.O. 4 of 1979).

(b) trace and freeze the assets;

(C) provide assistance and advice to other enforcement agencies on all matters in the field of narcotics and to collect information from all national and international enforcement agencies about illicit narcotics traffic and traffickers;

(d) maintain liaison with all national or international narcotics authorities, organizations, bodies, associations and societies and represent Pakistan in such conferences, seminars and workshops arranged by any such organization on narcotics related matters;

(e) arrange and co-ordinate training of own staff and members of other enforcement agencies in various aspect of narcotics enforcement,

(f) co-ordinate the project and schemes for elimination and destruction of poppy cultivation; and

(g) perform any other related functions which may be assigned to it by the Federal Government.

Once the direction is made to Anti-Narcotics Force or it takes notice of any request of foreign country, it must follow the process which has been highlighted in Section 59 of the Act, which is reproduced as under:

59. Foreign requests for an evidence-gathering order or a search warrant

(1) Notwithstanding anything contained in any law for the time being in force, where the Federal Government approves a request of a foreign State pursuant to Section 60 to obtain evidence in Pakistan or be able to be given by a person believed to be in Pakistan, the Director General or an officer authorized by him may apply to the High Court for

- (a) a search warrant; or*
- (b) an evidence-gathering order.*

(2) The High Court to which an application is made under sub-section (1) may issue an evidence-gathering order or a search warrant under this sub-section, where it is satisfied that there are reasonable grounds to believe that--

- (a) an offence has been committed, or is suspected on reasonable grounds to have been committed against the laws of the requesting State which, if committed in Pakistan, would have constituted an offence under this Act*
- (b) evidence of the commission of the foreign offence or information that would reveal the whereabouts of a person who is suspected of committing the foreign offence is likely to be found in a building, receptacle or place in Pakistan; and*
- (c) in the case of an application for a search warrant, it would not, in all the circumstances, be more appropriate to grant an evidence-gathering order.*

This section applies not only for making request pursuant to section 60 of CNSA, 1997 but request for evidence gathering process if it is received from a foreign government, which clearly provides that evidence gathering process shall be initiated only on the direction of High Court. This section has specifically been designed to protect the basic right of fair trial and due process in offences which are disclosed and reported beyond the limits of territory of a sovereign State. It is clear that non-observance of above process has contaminated and maligned the whole process of inquiry, registration of FIR and Investigation which has rendered the process as unfair, unjust and unlawful and on the basis of such unlawful foundation, trial cannot be held legal by stretching some provisions of Cr. P.C or CNSA for taking exception to it. The contour of this section has also been replicated in new legislation whereby Parliament has introduced “*Mutual Legal Assistance (Criminal matters) Act, 2020*”. Provision of

section 9 of the said Act, for evidence gathering order are almost similar to the section 59 of CNSA, 1997 which requires that permission of the court is essential. For reference some portion of section 9 of Mutual Legal Assistance (Criminal matters) Act, 2020 is reproduced as under;

9. Foreign request for an evidence gathering order or search warrant-

(1) Notwithstanding anything contained in any other law for the time being in force, where the central authority approves the request of a country pursuant to section 8 for the following purposes, namely: -

(a) taking of a statement or testimony from a person; or

(b) production of documentary or other evidence in Pakistan: or

(c) identification of a person, property or record,

the central authority may apply to the court for a search warrant or any evidence gathering order, as the case may be.

12. Aut dedere, aut judicare

The principle *aut dedere, aut judicare* finds its place in international criminal law and is the core principle in extradition offences; it is usually applied in transition offences particularly organized one which affect more than one sovereign states. The principle of double criminality pushes this principle on the ground that if an act or omission is an offence under the laws of both or more sovereign states, the offenders shall be tried and punished in either of the States and both of the Sovereign states can ask to each other “either to Prosecute or to extradite” which is called “*aut dedere, aut judicare*”. It is applicable in extraditable offences; Section-66 of Control of Narcotics Substance Act, 1997 declares all offences in Chap II of the Act are extraditable. Foreign requests for extradition could only be materialized when they conduct investigation and found that a particular subject/citizen of any foreign state is involved in commission of offence. Before that certain preliminary requests can be forwarded to each other with respect to inquiry on certain subject or transfer of documents or suspected articles. In this case, a formal request from Canadian Government was referred as of dated 18.03.2013 upon which an inquiry was commenced *but no such formal request for carrying out inquiry or investigation was brought on record as evidence, nor such formal request was exhibited in the evidence.* It was only after the inquiry by ANF, a request was made to Canadian Government to forward copies of proceedings relating to recovery of Narcotics as reflected from EX-POO. Even then,

if the ANF has found the accused involved in the crime, it must have forwarded a request to Federal Government to inform the Canadian government that under the “Principle of aut dedere, aut judicare” the accused are being prosecuted in Pakistan. This helps the country to take on board the other State to assist in prosecution of offences in Pakistan through production of documents, witnesses or other articles during trial so as to provide linked evidence; which has not been done in this case. This is an illegality which cannot be cured under section 537 of Cr. P.C. which vitiates the trial on this score.

13. **Consideration of record of a foreign agency, before the trial court without formal recording of evidence**

Though prosecution has brought on record the certified copy of affidavit of *Sergeant Stephen Anthony Doiron of Bedford* and copy of *recovery proceedings of narcotics including Reports of expert showing Narcotics recovered was found as Cannabis resin*. Yet the value of such documents is to be assessed in the light of Pakistan law on the subject. Article 85 of Qanun-e-Shahadat Order, 1984 regards acts or records of the acts, of the sovereign authority as public document and such documents certified in terms of Article 87 are admissible in evidence under Article 89 of the Order *ibid*; the relevant portion relating to acts of executive of foreign country is reproduced as under which is mentioned in Article 89(3) as under;

*“the Acts of the Executive or the proceedings of the Legislature of a foreign country, by journals published by their authority, or commonly received in that country as such or **by a copy certified under the seal of the country or sovereign or by a recognition thereof in some Federal Act**”.*

(Underlined is supplied for emphasize)

Article 89 talks about the executive acts though acts of conducting investigation can be termed as executive in our legal system yet they are admissible in evidence subject to judicial scrutiny. Once an investigation report or statement of investigation officer is recorded by a court of competent jurisdiction, it becomes an evidence of fact stated therein and not otherwise. Presumption cannot be imported from a foreign jurisdiction about the documents which are not admissible in evidence in our legal system. Though some other foreign documents

which are not subject of criminal investigation can be admitted into evidence if certified as per law yet criminal investigation process has no scope for its admission in evidence unless it has undergone judicial scrutiny. Though report of expert is *per-se* admissible yet proceedings of recovery and affidavit of any witness is always subject to judicial scrutiny and contents thereof are to be proved by its maker.

All such foreign documents without legal translation from High Commission, Embassy and Ministry of Foreign affairs are not admissible in evidence.¹ In the present case foreign documents brought on record were only attested by the High Commission, yet they were not routed through Ministry of foreign affairs; therefore, they do not qualify to be certified documents and as such cannot be used as evidence. The learned Prosecutor ANF states that Article 96 of Qanun-e-Shahadat Order, 1984 gives space for utilization of such document; before attending to such contention, it is appropriate to reproduce Article 96 of Qanun-e-Shahadat Order, 1984 which is as under;

96. Presumption as to certified copies of foreign judicial records.-(1)

The Court may presume that any document purporting to be a certified copy of any judicial record of any country not forming part of Pakistan is genuine and accurate, if the document purports to be certified in any manner which is certified by any representative of the Federal Government in or for such country to be the manner commonly in use in that country for the certification of copies of judicial records.

(2) An officer who, with respect to any territory or place not forming part of Pakistan, is a Political Agent, therefore, as defined in Section 3, clause (40), of the General (2) An Causes Act, 1897 (X of 1897), shall for the purposes of clause (1) be deemed to be a presentative of the Federal Government in or for the country comprising that territory or place.

Bare reading of such Article reflects that it talks about certified copies of judicial record of any foreign country. This Article does not relate to admissibility or otherwise of a copy of judicial record of a foreign country; it merely enables the court to raise a presumption that a judicial record of foreign country is genuine.² The documents produced by the prosecution in this case are not the subject matter of any judicial record,

¹ Syed Hamid Saeed and others v. The State (2017 P Cr. L J 854) and Mst. Mangti versus Mst. Noori and others (1995 CLC 210).

² Mst. MOSELLE EELIAS VERSUS Kh. AHMED SAID (PLD 1959 (W.P.) Karachi 760)

and whether if these documents were later used in any court or not, this information is missing in this case.

14. **Proving a fact through affidavit**

Last question to be attended on the legal side is whether proving a fact through affidavit is recognized in criminal law; study of laws shows that there are certain provisions in Cr. P.C which allow proving of fact through affidavit; those are as follows;

- i. **Section 74 Cr. P.C.**
- ii. **Section 539-A of Cr. P.C**
- iii. **Section 526 (4) of Cr. P.C**

Relevant excerpts of above provisions are reproduced as under.

74. Proof of service in such cases and when serving "[person] not present. (1) When a summons issued by a Court is served outside the local limits of its jurisdiction, and in any case where the "[person] who has served a summons is not present at the hearing of the case, an affidavit, purporting to be made before a Magistrate, that such summons has been served, and a duplicate of the **summons purporting to be endorsed** (in manner provided by Section 69 or Section 70) by the person to whom it was delivered or tendered or with whom it was left, **shall be admissible in evidence**, and the statement made therein shall be deemed to be correct unless and until the contrary is proved.

539-A. Affidavits in proof of conduct of public servant.-(1) When any application is made to any Court in the course of any inquiry, trial or other proceeding under this Code, and allegations are made therein respecting any public servant, the application may give evidence of the facts alleged in the applications by affidavit, and the Court may think fit, order that evidence relating to such facts be so given. An affidavit to be used before any Court other than a High Court under this section may be sworn or affirmed in the manner prescribed in Section 539, or before any Magistrate. Affidavits under this section shall be confined to, and shall state separately, such facts as the deponent are able to prove from his own knowledge and such as he has reasonable grounds to believe to be true, and, in the latter case, the deponent shall clearly state the grounds of such belief.

(2) The Court may order any scandalous and irrelevant matter in affidavit to be struck out or amended.

526. High Court may transfer cases or itself try it.-

(4) **Every application** for the exercise of the power conferred by this section shall be made by motion, which shall, except when the applicant is the Advocate General, **be supported by affidavit or affirmation.**

Except above provisions, there is no other provision in law which could be used to prove a fact through affidavit.³ Thus, it is clear that there is no provision in law which could help the prosecution to bring on record affidavit of Sergeant as an evidence of fact of recovery and recovery proceedings through the mode and manner adopted by the court in this case.

15. If the witnesses are not available, or prosecution cannot produce them due to certain reasons, it can request the court for recording of statement of investigation members of foreign country through live Link i.e., Skype or through any modern gadgetry. Even prosecution can apply for commission u/s 503 (2-B) of Cr. P.C for recording the statement of such witnesses in Canada. For reference section 503 Cr. P.C is reproduced as under;

503. When attendance of witness may be dispensed with.-(1)

Whenever course of an inquiry, a trial or any other proceeding under this Code it appears to [...] a Court of Session or the High Court that the examination of a witness is necessary for the ends of justice and the attendance of such a witness cannot be procured without an amount of delay, expense or inconvenience which, under the circumstances of the case, would be unreasonable, such [...] Court may dispense with such attendance and may issue a commission to any [xxxx] Magistrate of the first class, within the local limits of whose jurisdiction such witness resides, to take the evidence of such witness.

[(2).....]

[(2-A)When the witness resides in an area in or in relation to which the President has extra-provincial jurisdiction within the meaning of the Extra-Provincial Jurisdiction Order, 1949 (G.G.O. No. 5 of 1949) the commission may be issued to such Court or officer, in the area as may be recognized by the President by notification in the official Gazette as a Court or officer to which or to whom commission may be issued under this sub-section and within the local limits of whose jurisdiction the witness resides.]

(2-B) When the witness resides in the United Kingdom or any other country of the Commonwealth ... or in the Union of Burma, or any other country in which reciprocal arrangement in this behalf exists, the omission may be issued to such Court or Judge having authority in this behalf in that country as may be specified by the Federal Government by notification in the official Gazette.

(3) The Magistrate or officer to whom the commission is issued [...] shall proceed to the place where the witness is or shall summon the witness before him, and shall take down his evidence in

³ 1995 P C r L J 1255, Muhammad Munir V. State; 1995 P Cr LJ 1838 Javaid Iqbal B. State; 1995 MLD 1254, Liaqat Ali V. State; 1986 P Cr LJ 2965, Sarfraz Ahmad V. State; PLD 1985 LHR 345, the State V. Saleem Khan; PLD 1984 LHR 450, Abdul Majid Vs. State;

the same manner, and may for this purpose exercise the same powers, as in trials of '(.....) cases under this Code.

[(4) Where the commission is issued to an officer as is mentioned in sub-section (2A), he may, in lieu of proceeding in the manner provided in sub-section (3), delegate his powers and duties under the commission to any officer subordinate to him whose powers are not less than those of a Magistrate of the first class in Pakistan.]

Canada is a member of Common Wealth countries and there were arrangements and understanding between Pakistan and Canada; therefore, issuance of commission in a foreign country in which reciprocal arrangement exist, was must.⁴

16. Now we examine the case on factual side within the scope of legal provisions discussed above; case is examined firstly from Prosecutorial perspective which exercise was done with the able assistance of Learned Prosecutor for ANF as under;

i). Documents Exh. PO/2-35 (pages 234 to 267 of case bundle/paper book) are the documents showing the details of the investigation conducted on their part by Canadian Authorities. Amongst said documents is affidavit (Ex.PO/3) of Sargent Stephen Anthony Doiron of Bedford, Province of Nova Scotia, a senior member of the Royal Canadian Mounted Police. The said document gives complete details of arrival of Container from Karachi and recovery of Hashish therefrom apart from sampling and verification of the Hashish. It further mentions that the shipper was Index Traders, 55-Central Plaza Barkat Market, New Garden) Town, Lahore, Pakistan.

ii). The reports (Exh. PO/7 to Exh. PO/15) prepared by the Analyst-Department of Health CANADA were brought on record, which conclusively establish that samples taken out of the substance recovered were examined, analyzed and checked by the experts and found to be Cannabis resin.

The report dated 17.01.2003 (Exh. P25) prepared by Sergeant Stephen Anthony Doiron of Bedford. Province of Nova, Scotia, Royal Canadian Mounted Police also gives complete picture of the offence committed.

iii). Ashraf accused (since dead) owner of vehicle No.LXU-8820, two days before transportation of the consignment to Karachi, applied for transfer of the vehicle LXU-8820 to a fictitious person i.e. Noor Din. This registration number LXU-8820 was forged and fictitious. Actual registration number of the vehicle was LEX-2435 which was changed as LHU-8820. The record of the original registration was removed from the computer and instead firstly in

⁴ Mohtarma BENAZIR BHUTTO VS THE STATE (PLD 1999 SC 937)

place of LEX-2435, a fictitious number i.e., LHU-8820 was inducted which was again changed to number LXU-8820.

iv). As per testimony of Farhan Saleem (PW6) that Shafqat appellant-convict, was the Clearing Agent who was also the head of Globe Linkers Services Cargo situated at Ahad Heights, Flat No.1, Second Floor, Mini Market, Gulberg-II, Lahore and he played major role in getting cleared the consignment in question. He managed to take the consignment to Chief Executive of MLS (Marine logistic Services) and had assured them that he knew well the shipper i.e. Index Traders and also knew Razzaq (P.O.), the owner of Index Traders.

v). Abdul Rahman/appellant had produced before Investigating Officer (PW25) two documents P1 and P2 in his defence but when Arif PW4 owner of the goods transport company appeared and deposed on oath that invoices P1 and P2 were not issued by his company and they had no record in the company about these invoices.

vi). The evidence shows that Shafqat appellant approached PW6 and settled the rent for the container and engaged Abdul Rahman/appellant of M.A. Land Company for the clearance and transportation of the container. Shafqat appellant himself submitted Bill of Lading; convey note and other documents ensuring that the documents submitted by him shall not be delivered to any other firm or company except M.A. Land company where his associate Abdul Rahman was working as Marketing Manager.

vii). None of the accused alleged any previous enmity with the complainant, investigating officer or any other witness. Customs officials were discharged because during the investigation they were not found involved.

viii). The stand point of the appellants-convicts that consignment of this case had remained for a couple of days at Sri Lanka where the container was shifted to another ship and there was possibility that the narcotics could have been put into the container at Sri Lanka, was rebutted by Affidavit Ex.PO/3 duly sworn by Sergeant Stephen Anthony, on which document no objection was ever raised by the convict-appellants.

ix). The appellants are guilty of an offence punishable under section 15 of CNSA, 1997 for abetment, association, and facilitation to the PO accused Razzaq in the smuggling of 11.79 tons of Hashish from Pakistan to Canada. The place of recovery is thousands of miles away from Pakistan, the prosecution could not be expected to bring into Pakistan the case property. However, the best possible evidence, as detailed above, in the shape of Exh. PO/3, Exh. PO/7 to Exh. PO/15 to establish such recovery of Hashish.

x). prosecution has adopted all possible means to prove the case against the appellants; in this case some special rules of evidence are involved which could be stretched in favour of prosecution.

Similarly, case of the appellants was examined with defence perspective, with the assistance of learned Counsel for appellant Abdul Rehman as under:

Lt Col. Shaukat Hussain, Joint Director, Special Investigation Cell ANF Islamabad initiated the enquiry and submitted Investigation Report (Exh.PF page 215-223) wherein the entire role of accused Abdul Rehman is mentioned in para 3(b) as

"A lethargic attitude whether intentional or un-intentional is noticed on the part of Abdul Rehman of M.A. Land"

On the basis of Investigation Report (Ex.PF), Police Station ANF Lahore framed FIR No. 20/2003 dated 2.8.2003 (Ex.PA page 197-200) against Razzaq Ahmed, Muhammad Shafqat, Muhammad Ashraf Gujjar, Abdul Rehman, Noor Din and Custom officials namely Waseem Raza Inspector. Arshad Javaid Deputy Superintendent, Sheraz Munir Malik, Superintendent. The Investigation Officer of the said case submitted his report U/S 173 Cr.P.C. The Special Court of ANF Lahore framed the charge U/s of Cr.P.C. against accused Abdul Rehman:

"that in the inquiry, it revealed that you Abdul Rehman accused being the Marketing Manager, M.A. Land Transport Co, Bonded Cargo Service, Outside Moghalpura Dry Port, Lahore allowed to use Truck No. LXU-8820 in violation of standing instructions for Bonded Carrier which picked up the container from the container terminal on fake bilty of Al-Atif Goods forwarding agency with its branch office at 58-LDA, General Truck Stand, Ravi Link Road, Lahore and brought the consignment to the Moghalpura, Dry Port and from the Dry Port to the Karachi Port. Therefore, you facilitated and assisted the shipper in the smuggling of huge quantity of 11.79 ton of Hashish from Pakistan to Canada while concealing the actual identity of the shipper and its associates for illicit financial gain

PW-1, PW-5 to PW-18, PW-21, PW-23 and PW-24 do not incriminate the appellant Abdul Rehman

PW-2 (Inspector. Sahib Khan, Special Investigation Cell, ANF, Islamabad) during cross examination states (Last two lines)
"in my enquiry no overt act or otherwise of Abdul Rehman accused was incorporated".

PW-3 (Dry Port Supervisor, Brinks Sealing)

In his examination in chief, he states that on 22.1.2002 Muhammad Asif representative of M.A. Land company was with me and I got the container which was to be exported, sealed. The said container was already carrying custom seal..... After some period ...Abdul Rehman accused asked me as the time could not be changed and I replied to him in negative and told this that it will not be possible because the original copy of document is already present in the office.

In his cross examination he states.... I do not remember the date on which Abdul Rehman accused came to me to make the request for changing the time in the document. After many days of the dispatching of the shipment Abdul Rehman accused had come to me. I was present at the Dry Port Moghalpura when he came to me. I was present under an open shed when he came to me. However, I do not remember of number of that shed. I do not remember when Abdul Rehman accused contacted me at that time the

other persons were present under the aforementioned shed or not. Volunteered that normally the persons are present over there..... Abdul Rehman accused had not come to me when the manifest was brought to me by Muhammad Asif. The manifest was signed by said Asif and not by Abdul Rehman. I had not made any report to head office or customs regarding the request made by accused Abdul Rehman to me for changing the date. Abdul Rehman accused also did not offer me any bribe in this regard.

PW-4 (Arif Mehmood Khan of Al-Atif Goods)

During cross examination states (last four lines)

Abdul Rehman accused neither personally, orally or telephonically or in writing requested me to issue the Bilty. Abdul Rehman accused also did not ask me to book the vehicle No. LXU-8820.

PW-19 (Inspector, Special Investigation Cell)

During cross examination states (Last five lines).

I have not shown the letter authorizing me to have enquiry. Volunteered, I have pointed out the said letter in my examination in chief. There is no letter available on the file authorizing me to conduct inquiry in this case.

PW-20 (Muhammad Hanif. Al-Atif Goods)

During cross examination he states (last four lines). No person came to me from M.A. Land company for booking of truck No. no telephone in this regard. Abdul Rehman accused also did not visit me in this respect. LUX-8820.

PW-22 (Mubarak Ali, AD (ANE)

This witness has arrested Abdul Rehman accused. In his cross examination he states:

Line-3: No search warrant was with us.

Line 6-7: There was no stamp of Manager Marketing on the said documents

Line 9-10: No narcotic was recovered from personal search or on the pointation of the accused.

PW-25 (Umer Hayat Javaid, IO):

He interrogated accused Shafqat, Abdul Rehman, Muhammad Ashraf. He also states that he arrested Waseem Raza Inspector Customs, Arshad Javaid Deputy Superintendent, Customs and Sheraz Munir Malik, Superintendent Customs, subsequently they got discharged as they were found innocent during the investigation (Page-97 of Chief of 10). In Cross Examination (Page 98 and 99), IO states:

“No search warrant was procured from judicial Magistrate at the time of raid upon office of M.A. Land Company. The documents which were taken into possession from the said office were not bearing the signature of Abdul Rehman accused. Export transit Manifest (Exh. PBB/2) does not bear signature of Abdul Rehman, accused. The said document has been allowed by the custom authorities for transshipment. It is the only document allowed for transshipment from Dry Port Karachi. No document was recovered by me during investigation from Abdul Rehman accused which authorize the same accused for booking of vehicle for transshipment. I also did not recover any document from Custom Department which authorized Abdul Rehman accused for taking permission of vehicle for transshipment. It is correct that the same customs officials were also arrested in this case but subsequently they were found innocent and were got discharged. The officials who examined the goods relating to this case were included in these persons. I took in possession the sample of the cloth relating to the consignment of this case. No Hashish was recovered by

custom officials at the time of their examination. The container was sealed after the said examination and the said container was sent to Karachi. There is no document available on record to show the presence of Abdul Rehman accused at the time of examination by the custom authorities nor there is any document showing that the said accused went along with the container to Karachi. Abdul Rehman accused is neither exporter nor clearing agent nor proprietor of M. A. Land Company but he was Marketing Manager Export of M. A. Land Transport Company at Lahore. The FIR was lodged by me on the basis of Inquiry Report sent by Shaukat Hussain, Joint Director, ANF, Special Investigation Cell, Islamabad. No case property was received from foreign country. I also did not record the statement of any recovery witness of narcotics in this case. I visited custom office at Dry Port, during investigation. No one from the custom authorities stated that any sort of narcotics was being transported in the said shipment..... IO also stated that "It came to my notice during investigation that the shipment container of this case had a break at Sri Lanka. I cannot tell the duration of said break. It is correct that the container was shifted to another ship at Sri Lanka. I did not collect any list about offloading of articles from the ship went to Sri Lanka from Karachi as well as the list of articles boarded on the other ship at Sri Lanka..... It is correct that no case property (narcotics) was produced in the court during trial. (Ref Page-100).

Reappraisal of evidence against Abdul Rehman requires that the portions of impugned judgment used against appellant be again examined; which are as under:-

*The Special Judge, Anti-Narcotics Court, Lahore announced the Judgement on 18.1.2008; **first observation is under:***

The Royal Canadian Mounted Police ...requested to determine the origin of the cargo and its ultimate receiver and destination..... Whereas vide para-2 of Page 126 of judgement states "The Canadian Government a formal request to the Government of Pakistan "to conduct further investigation and determine the origin of cargo and prosecute the culprits.

This court has observed that here is nothing on record that the Canadian Government has sent a formal request to the Government of Pakistan to conduct further investigation and determine the origin of cargo and to prosecute the culprits. **(There is no documentary evidence in the case file)**

2nd Observation on Page-128 Para-5 *"It was also found that the said consignment was transported from Lahore Dry Port to Karachi port under the supervision/responsibility of Abdul Rehman".*

This court has observed that there is nothing on record which proves that the alleged consignment was transported from Lahore Dry Port to Karachi port under the supervision/responsibility of Abdul Rehman.

3rd Observation on Page-144 para-36 *implicates Abdul Rehman ignoring the facts of cross examination of 10 (PW-25) who states:*

The documents which were taken into possession from the said office were not bearing the signature of Abdul Rehman accused. Export transit Manifest (Exh. PBB/2) does not bear signature of Abdul Rehman, accused. The said document has been allowed by the custom authorities for transshipment. It is the only document which allowed the vehicle for transshipment from Lahore Dry Port to Karachi. No document was recovered by me during investigation from Abdul Rehman accused which authorized the same accused for booking of vehicle for transshipment. I also did not recover any document from Custom Department which authority Abdul Rehman accused for taking permission of vehicle for transshipment.

4th observation on Page-158, para-44 *states "This is a case of circumstantial evidence, as there was no direct evidence available in this case".*

This court has observed that neither Abdul Rehman booked the container nor loaded the cargo in it. He did not arrange the vehicle nor took the empty container from the shipping line. He, neither assisted in custom examination of cargo nor he was found present at the time of examination. He did not produce or sign any document nor he allowed the vehicle. His connivance with any co-accused has not been established. In addition, he did not escort the container from Lahore to Karachi nor he signed the Carrier Manifest.

5th Observation on Page-158, para-44 *states "It stands proved; therefore, that cargo sent from Dry Port Lahore under the cover of polyester fabric upon Interception in Canada was found containing Hashish".*

Contra is the view of this Court that there is no documentary evidence that narcotics was originated from Lahore Dry Port. PW-25(10) (Ref page-99, line 1-4 "No Hashish was recovered by Custom Officials at the time of their examination. The container was sealed after examination and the said container was sent to Karachi"

6th Observation on Page-163, Para-47 *states "recovery of 12 documents retrieved from an Amirah in the office of Abdul Rehman accused implicates him"*

The photocopies of documents were recovered from the premises of M/T (Pvt) Ltd which is a Government approved Custom Bonded Carrier who transported the alleged consignment from Lahore to Karachi by taking permission of Custom authorities on Export Transit Manifest (Exh. PBB/2).

7th Observation on Page-163 Para-48 (23.1.2003). *“The Learned court has relied upon the Affidavit from Sergeant Stephen Anthony Doiron, Royal Canadian Mounted Police, the Principal Investigator of this case in Canada which states "similarly there was existing oral as well as documentary evidence to know the involvement of Shafqat as well as Ashraf two accused in this case".*

But, it is a fact that name of Abdul Rehman does not appear as an accused in the investigation conducted by Royal Canadian Mounted Police on which court has relied upon.

From the above observations, it is clear that ANF arrested Custom officers who examined, sealed and allowed the transshipment of container and later on got it released on the basis that there was no narcotics at the time of scaling of container. Prosecution has failed to prove that the narcotic was impounded in the said container within the territory of Pakistan. Lt Col. Shaukat Hussain, Joint Director, Special Investigation Cell ANF Islamabad initiated the enquiry and submitted Investigation Report did not appear in court as PW. None of the document was signed or produced by Abdul Rehman accused/appellant. The said judgement reveals that this was a case of circumstantial evidence and no direct evidence is available in this case. The role discovered during inquiry as mentioned in para 3(6) of Ex.PF is of "a lethargic attitude whether intentional or un-intentional on the part of Abdul Rehman of M.A. Land, Travelling Company. His case is of no evidence and none of the prosecution witness deposed against him. Hence charge was not proved in this case. No connivance with any co-accused was ascertained or located by the prosecution in this case. That all the powers for allowing the vehicles for transshipment from inland custom stations to sea port and vice versa rest with Custom Officers as per Section 52, 54, 56, 63 and 197 of Customs Act 1969 and the same were exercised by the concerned Customs officer while allowing the vehicle on Ex. PBB/2. The

Custom Officers were arrested and got discharged by the prosecution on the grounds: that no violation on their part was found during investigation. From the above submissions, it is clear that case against appellant is not made out; he was wrongly indicted; no link evidence was brought on record. Prosecution through certain documents tried to close the neck but even such documents were only photo copies which have no evidentiary value.

17. The case against Shafqat appellant was examined on the touch stone of reappraisal of evidence which show that charge is not proved due to following lapses in prosecution case.

1- *Consignment consists of 169 bales of polyester cotton fabric was examined by Custom authorities and sealed and thereafter stamped after thorough examination and forwarded to Karachi and even in Karachi Dry Port Mate receipt which is MARK J (page 408 of case bundle) it shows that consignment was received at Karachi Dry Port in sealed conditions and in this regard a clearance certificate was issued by PHONIX ARMOUR (Mark E). It is relevant that complaint forwarded by Canadian Authorities is altogether different from that of complaint/ FIR herein Pakistan. In complaint EX PFF (Page-198) description of recovered stuff is altogether different from that of consignment sent from Pakistan. In the latter part of EX. PO/31 alleged hashish was recovered from bales total number 254 while consignment sent from Pakistan was consists of 169 bales. No witness of alleged narcotics recovery was ever produced by the prosecution by using modern means of communication.*

While awarding sentence this fact was ignored by learned trial court that the container from which alleged Hashish was recovered was damaged during voyage and sea storm and was badly damaged and stuff which was recovered from said container in Canada was altogether different from that of consignment booked in Pakistan as in Pakistan 169 bales of Polyester cotton fabric was booked while stuff which was recovered from said container in Canada was having cat food etc. and almost 254 bales were recovered from said container. Regarding sea storm and damage of container Page NO.257 EX.PO is very much relevant. Information of sea storm was also brought on record through Letter Ex-Mark-D/1-4 (page 397 of case bundle/paper book)

Prosecution did not opt to produce any original documents as evidence regarding this alleged consignment nor any direct oral or documentary evidence is available on record to connect the appellant with the alleged occurrence. Prosecution produced as many 25 PWs and none of them has alleged any allegation or direct evidence against appellant and even PW-3 SYED SHAHINSHAH dry port supervisor himself admitted that consignment was examined by custom authorities and sealed by him under his personal supervision and no illegality was committed in this regard. Prosecution did not produce LT Col Shokat Hussain originator of these proceedings as PW and PW-24 who was a dispatcher did not say even a single word against the appellant.

Only allegation levelled against appellant was of negligence but no such evidence could be produced. Prosecution could not produce any evidence to prove appellant as companion or facilitator of Mohammad Razzaq and

nothing was recovered from personal possession of appellant. Whole prosecution story is based upon uncertified copies of record which are inadmissible in the eyes of law. No foreign judgment is available on record that any accused to whom this alleged – consignment was sent was arrested and sentenced. Even during physical remand nothing was recovered from the appellant nothing was found in his bank account. PW-25, Complainant of the case admitted during cross examination that he could not find any evidence from the spot investigation that anything relating to narcotics substance was dispatched from the dry port.

From the above observations, it is clear that case against appellants is not proved on the factual side; particularly in the light of following facts:-

- i. No link evidence is available against the appellants for possession, sealing or transportation of Narcotics.
- ii. Shipment was not sealed in the presence of appellants before its dispatch to Canada
- iii. Shipment was sealed by and in the presence of custom officers, who have been exonerated during investigation.
- iv. Description of packaging sent from Pakistan does not match with the property description found by Canadian Police.
- v. During Voyage, ship was hit by a sea storm at Sri Lanka and the container was found damaged, as reported by Sri Lankan authorities and which fact was confirmed by Canadian Police that container was damaged.
- vi. Canadian authorities did not inform of investigation extending to consignee of this shipment, nor it was shown that proceedings reached to its logical end.
- vii. Case property was not produced before the trial court neither in Pakistan nor in Canada.
- viii. No link of present appellants was found with proclaimed offender Abdul Razzaq who actually was the consigner.

No observation is preferred for involvement or otherwise of Ashraf accused because he has already died.

18. In the attending facts and circumstance, when the prosecution has not taken the central authority into picture to legalize the initiation of inquiry, nor correspondence was made with respect to permission for aut dedre, aut judicare, permission of High Court under section 59 of CNSA was not obtained for evidence gathering process, affidavit of sergeant being inadmissible in evidence, no commission has been issued for

recording of evidence of Canadian National police, nor any effort was made to record their statement through live link or skype, documents brought on record were not certified as per law, the prosecutorial stance from different angles and perspective leads to only one conclusion that case against the appellants is not made out. we are satisfied that no legally admissible evidence is available in this case against the appellants; charges against the appellants are disproved; therefore, they deserve to be acquitted in this case. Above appeals are allowed; their convictions and all sentences are set aside and they are acquitted from the charges. They are present on bail; their sureties are discharged.

19. Before parting with this judgment, it is made clear and directed that co-accused Abdul Razzaq is PO whose case shall be decided, whenever he is arrested, on its own merit without being prejudiced from the observation of this court. Perpetual warrants of arrest issued against him by the trial court would remain intact.

(ANWAARUL HAQ PANNUN)
JUDGE

(MUHAMMAD AMJAD RAFIQ)
JUDGE

Javed*

APPROVED FOR REPORTING.

JUDGE